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Case Number: 25PSCV03816 Hearing Date: September 21, 2026 Dept: G

Plaintiff

Darleen Vorobyov's Motion to Compel Nonparty Google, LLC's Compliance with
Subpoena for Production of Business Records and Request for Monetary Sanctions

Respondent:

Nonparty Google, LLC

TENTATIVE

RULING

Plaintiff

Darleen Vorobyov's Motion to Compel Nonparty Google, LLC's Compliance with
Subpoena for Production of Business Records is GRANTED IN PART and deemed MOOT
IN PART.

Plaintiff

Darleen Vorobyov's Request for Monetary Sanctions is DENIED WITHOUT PREJUDICE.

BACKGROUND

This

is a negligence action against public entities.

On July 15, 2025, nonparty David Steven Vorobyov allegedly operated his
motorcycle on Interstate 210, which is allegedly controlled and maintained by
defendants State of California (the State), the California Department of
Transportation (Caltrans), and the California Highway Patrol (CHP), when he allegedly
struck a metal pole, lost control of his motorcycle, and sustained fatal
injuries. David Steven Vorobyov is

survived by his widow, plaintiff Darleen Vorobyov, and his parents, plaintiffs Oleg Vorobyov and Inna Vorobyov.

On October

23, 2025, Darleen Vorobyov filed the Complaint.

On July 29, 2026, Darleen Vorobyov, Oleg Vorobyov, and Inna Vorobyov (collectively, the Vorobyov Family) filed the operative Amended Complaint, alleging causes of action for (1) dangerous condition of public property, (2) vicarious liability, and (3) negligence.

On

July 14, 2026, Darleen Vorobyov filed this motion to compel production of business records. On September 8, 2026, nonparty Google, LLC (Google) filed the opposition, and on September 14, 2026, Darleen Vorobyov filed the reply.

The

motion is set for hearing on September 21, 2026.

ANALYSIS

Darleen

Vorobyov moves to compel Google's compliance with a subpoena for business records. For the following reasons, the motion is GRANTED IN PART and deemed MOOT IN PART.

Legal

Standard

A

party seeking discovery from a person who is not a party to the action may obtain discovery by oral deposition, written deposition, or deposition subpoena for production of business records. (See Code Civ. Proc., § 2020.010.)² A deposition subpoena may command: (1) only the attendance and testimony of the deponent, (2) only the production of business records for copying, or (3) the attendance and testimony of the deponent, as well as the production of business records, other documents, electronically stored information, and tangible things.³ (See Code Civ. Proc., § 2020.020.) Service of a deposition subpoena shall be done with sufficient time in advance of the deposition to

provide the deponent a reasonable opportunity to locate and produce any designated documents and, where personal attendance is commanded, a reasonable time to travel to the place of deposition.¿ (See Code Civ. Proc., § 2020.220, subd. (a).)¿ Personal service of any deposition subpoena is effective to require a deponent who is a resident of California to: personally appear and testify, if the subpoena so specifies; to produce any specified documents; and to appear at a court session if the subpoena so specifies.¿ (See Code Civ. Proc., § 2020.220, subd. (c).)

If

a deponent fails to appear or produce requested documents for a deposition, the deposing party may file a noticed motion to compel deponent's compliance. (See Code Civ. Proc., § 1987.1, subd. (a).) A deponent who disobeys a deposition subpoena may also be punished for contempt without the necessity of a prior court order directing compliance.¿ (See Code Civ. Proc., § 2020.240.)¿ A noncompliant deponent may also be ordered to pay \$500 to the deposing party in addition to any damages the deposing party incurred as a result of the deponent's failure to attend the deposition. (See Code Civ. Proc., § 2020.240, citing Code Civ. Proc., § 1992.)

Discussion

A. Motion to Compel Compliance

Darleen

Vorobyov obtained an order permitting early discovery on May 5, 2026. (See Mot., King Decl., ¶ 9; see also 5/5/2026 Order, p. 1.) Darleen

Vorobyov then served Google with a deposition subpoena for business records on May 7, 2026. (See Mot., King Decl., ¶ 10; see also Mot., Exh. 4.)

The deposition subpoena sought (1) records of reports about debris, objects, and hazards on the stretch of highway where David Steven Vorobyov lost control and passed away and (2) records reflecting the transmission of those reports to government entities. (See Opp., pp. 4, 6; see also Leach Decl., Exh. C.)

Google produced the records of reports about debris, objects, and hazards, the first category of documents sought, on July 17, 2026. (See Leach Decl., ¶¶

11–12.) Google obtained the records reflecting the transmission of reports to government entities, the second category of documents sought, but communicated that it would not produce these records until after the entry of a stipulated protective order. (See Leach Decl., ¶¶ 17, 21.) The court signed the stipulated protective order on September 16, 2026. The stipulated protective order provides for the “immediate production of [c]onfidential [m]aterials” under its own terms. (9/8/2026 Stip. P.O., ¶ 23.) Thus, the court finds there are no further grounds upon which Google may justify the withholding of the documents subject to the deposition subpoena. However, since the court just signed the protective order two (2) court days prior to this hearing, Google is ordered to provide the remaining documents responsive to Vorobyov’s subpoena on or before September 28, 2026.

Therefore, the motion to compel compliance with subpoena is GRANTED IN PART as to the second category of documents and deemed MOOT IN PART as to the first category of documents.

B. Monetary Sanctions

Monetary

sanctions are mandatory as against any party who fails “to respond or to submit to an authorized method of discovery,” “who unsuccessfully . . . opposes a motion to compel [discovery],” or whose failure to serve a timely response necessitated a motion to deem request for admissions as admitted, unless the court finds “the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §§ 2023.010, subd. (d); 2023.030, subd. (a); 2025.450, subd. (g)(1); 2025.480, subd. (j); 2030.290, subd. (c); 2031.300, subd. (c); 2033.280, subd. (c).)

Justification

is “substantial” if it is “clearly reasonable because it is well-grounded in both law and fact.” (Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1434.) The court may award sanctions in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed. (Cal.

Rules of Court, rule 3.1348(a).) While the imposition of sanctions is mandatory, the court “has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award.” (Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc. (2020) 56 Cal.App.5th 771, 791.)

Since the court signed the protective order two (2) court days before this hearing, on September 16, 2026, the court finds Google acted with substantial justification by waiting for the court to sign the stipulated protective order before producing the remaining documents, even though the protective order provides by its own terms for “immediate production.”

Therefore, Vorobyov's request for sanctions pursuant to the Code of Civil Procedure is DENIED WITHOUT PREJUDICE. If Google fails to provide the remaining responsive documents by the September 28, 2026 deadline set by the court, Vorobyov may renew the request for sanctions.

Therefore, the request for monetary sanctions is DENIED WITHOUT PREJUDICE.

CONCLUSION

For these reasons, the motion to compel compliance with subpoena for production of business records is GRANTED IN PART as to the second category of records and deemed MOOT IN PART as to the first category of records.

The request for monetary sanctions is DENIED WITHOUT PREJUDICE.